

		refute Defendants' claims as to the amount collected, Defendants have failed to meet their burden for the Third Cause of Action. The Motion therefore is DENIED. Counsel for Defendants to give notice of this ruling.
8	Hashimi v. American Honda Motor Co., Inc.	O/C
9	Vo v. Strawberry Pond Healthcare, LLC	The unopposed Petition of Kristie Vo to Maintain Elder Abuse/Neglect Action in the Name of Hang Vo, Deceased is GRANTED. Ms. Vo has submitted a declaration which satisfies the requirements of Code of Civil Procedure section 377.32. (<i>See generally</i> Declaration of Kristie Vo attached as Exhibit A to motion.) The motion is thus GRANTED. (Wel. & Inst. Code, § 15657.3(d).) Counsel for Ms. Vo is to submit a proposed order and is to give notice of this ruling.
10	Rancho Domingo Townhomes Community Assn. v. Azardmard	O/C
11	Creditors Adjustment Bureau, Inc. v. Matsunaga Enterprise, Inc.	O/C
12	Smith v. Kia America, Inc.	A) Demurrer Defendant Kia America, Inc.'s ("Defendant") Demurrer to plaintiff Wayne D. Smith's ("Plaintiff") First Amended Complaint ("FAC") is OVERRULED. Defendant demurs to the fifth cause of action ("COA") for Fraudulent Inducement – Concealment based upon lack of sufficient facts (Civ. Proc. Code § 430.10(e)), uncertainty (Civ. Proc. Code § 430.10(f), and the Economic Loss Rule ("ELR"). Sufficiency of Facts and Uncertainty "California case law similarly has viewed fraud by concealment on equal footing with fraud by affirmative misrepresentation. " 'Where failure to disclose a material fact is calculated to induce a false belief, the distinction between concealment and affirmative misrepresentation is tenuous. Both are fraudulent.' " [Citations.] "[I]ntentional concealment of a material fact is an alternative form of fraud and deceit equivalent to direct affirmative misrepresentation." " " (<i>Rattagan, supra</i>, 17 Cal. 5th at 39–40.)